

		Tentative Ruling: The Court OVERRULES Defendants’ demurrer as to the second cause of action. The Court ORDERS Defendants Bradley A. Patterson, Harry T. O’Hagin, LGI LLP, and Martin P. Cohn, individually and dba Cohn, Stewart & Associates to file an answer within 20 days.
2	Hakopian vs. Hakopian 2025-01454652	1. Motion to Strike Portions Of Complaint 2. Demurrer to Amended Complaint 1. Motion to Strike Defendant moves to strike the 2nd, 3rd, 5th, 10th, 11th, and 12th causes of action from the First Amended Complaint (“FAC”) on the grounds that the FAC was not drawn in conformity with the law. A trial court has discretion to strike out “any irrelevant, false, or improper matter inserted in any pleading” or “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Civ. Proc. Code § 436, subd. (b).) “It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all. The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.” (Community. Water Coalition v. Santa Cruz Cty. Local Agency Formation Commission (2011) 200 Cal.App.4th 1317, 1329 [cleaned up] [striking amendment adding new facts and a new cause of action even though it was based upon the same legal contention at issue in the original pleading].) Here, Plaintiff’s original Complaint asserted ten causes of action for: (1) quiet title; (2) declaratory relief; (3) reformation of deed; (4) ouster; (5) partition; (6) breach of contract; (7) breach of implied covenant of good faith and fair dealing; (9) assault; and (10) intentional infliction of emotional distress (“IIED”). (ROA No. 2.)

	Defendants demurred to all ten causes of action. On 12/8/25, the Court sustained Defendant’s demurrer, in part, with leave to amend the 1st, 2nd, 4th, 5th, and 10th causes of action (“December 8th Order”). (ROA No. 34.) The court sustained the demurrer to the 1st, 2nd, 4th and 5th causes of action because those claims were based on an oral agreement for an interest in real property in violation of the statute of frauds. (Ibid.) The court sustained the demurer to the 10th cause of action because Plaintiff failed to allege sufficient emotional distress. (Ibid.) On 12/23/25, Plaintiff filed the FAC alleging 12 causes of action for (1) quiet title; (2) fraud (fraudulent inducement); (3) cancellation of instruments; (4) declaratory relief; (5) unjust enrichment/constructive trust; (6) ouster; (7) partition of real property; (8) assault; (9) IIED; (10) conversion; (11) financial abuse of an elder; and (12) abuse of an elder. The 2nd, 3rd, 5th, 10th, 11th, and 12th causes of action are new and were not alleged in the original Complaint. Plaintiff contends the new labels and remedies are part of her effort to cure the defects identified by the Court and to plead newly developed facts. The Court agrees only as to the 2nd, 3rd, 5th causes of action fraud, cancellation of instrument and unjust enrichment/constructive trust. “[T]he general rule is that the holder of equitable title cannot maintain a quiet title action against the holder of legal title. But an exception exists when legal title has been acquired through fraud. In that case, available remedies include quieting title in the defrauded equitable title holder's name and making the legal title holder the constructive trustee of the property for the benefit of the defrauded equitable titleholder.” (Liberty National Enterprises, L.P. v. Chicago Title Ins. Co. (2013) 217 Cal.App.4th 62, 81 [cleaned up].) Here, Plaintiff amended the quiet title action to allege she maintains equitable title and Defendant obtained legal title as a result of fraud, among other things. (FAC, ¶¶ 39, 41-46.) Therefore, the new causes of action for fraud, cancellation of instrument and unjust enrichment/constructive trust are within the scope of the October 8th Order. However, as to the 10th – 12th causes of action, Plaintiff did not ask for, and the Court did not grant, permission to add new causes
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	of action for conversion, financial abuse of an elder and abuse of an elder. Those causes of action are not within the scope of the October 8th Order. (See Zakk v. Diesel (2019) 33 Cal.App.5th 431, 456 [holding that where the trial court granted leave to amend only to add a quantum meruit claim, plaintiff could not add a promissory estoppel cause of action without leave of court, even though plaintiff argued it addressed the statute of frauds defect and thus “directly responds to the Trial Court’s concerns”].) Tentative Ruling: Defendant John Hakopian’s Motion to Strike Portions of the First Amended Complaint is DENIED as to the 2nd, 3rd, and 5th causes of action and GRANTED as to the 10th, 11th and 12th causes of action. 2. Demurrer to Amended Complaint Defendant demurs to the 1st -7th and 9-12th causes of action of the FAC. Because the Court granted Defendant’s Motion to Strike the 10th, 11th, and 12th causes of action of the FAC, the demur to those causes of action is MOOT. <i>1st Cause of Action – Quiet Title</i> To plead a cause of action for quiet title, a plaintiff must allege: (1) a description of the property in question; (2) the basis for plaintiff’s title; and (3) the adverse claims to plaintiff’s title. (Cal. Code Civ. Proc., § 761.020.) “[T]he general rule is that the holder of equitable title cannot maintain a quiet title action against the holder of legal title. But an exception exists “when legal title has been acquired through fraud. In that case, available remedies include quieting title in the defrauded equitable title holder’s name and making the legal title holder the constructive trustee of the property for the benefit of the defrauded equitable titleholder.” (Liberty National Enterprises, L.P. v. Chicago Title Ins. Co. (2013) 217 Cal.App.4th 62, 81 [cleaned up].) Plaintiff no longer relies on an oral agreement as a basis for her title. Instead, Plaintiff bases her title on “a present equitable ownership and possessory interest in the Subject Property,
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		including the right to occupy and possess the property during her lifetime” due to Defendant’s acquisition of legal title through “fraud abuse of a confidential parent-child relationship, and unjust enrichment.” (FAC, ¶¶ 39, 41-46.) Plaintiff’s allegations of fraud by Defendant falls squarely within the exception. (See Liberty National Enterprises, L.P., supra, 217 Cal.App.4th at p. 81.) Tentative Ruling: The demurrer to the 1st cause of action is OVERRULED. <i>2nd Cause of Action – Fraud (Fraudulent Inducement)</i> The elements for fraud are “(a) misrepresentation (false representation, concealment or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 638.) Fraud must be alleged with particularity. (Goldrich v. Natural Y Surgical Specialties, Inc. (1994) 25 Cal. App. 4th 772, 782.) Thus, the complaint must allege facts showing “how, when, where, to whom, and by what means” the fraud was perpetrated. (Lazar, supra, 12 Cal.4th at p. 645.) Nevertheless, a general allegation that the representation was made with the intent to deceive the plaintiff is sufficient. (See Hall v. Mitchell (1922) 59 Cal.App. 743, 749 [although pleader need not adopt any particular phraseology, simple and direct averment that representation was made with intent to deceive would remove any uncertainty]; 5 Witkin, Cal. Proc. 6th Plead § 725 (2026).) Here, the FAC alleges Defendant made specific false representations to Plaintiff and Harry before and at the time title was placed in Defendant’s name beginning about 1998 and lasting for about 26 years, including, inter alia, that: (1) title would be in Harry’s, Plaintiff’s, and Defendant’s names; (2) Harry and Plaintiff would share ownership with Defendant; (3) Defendant would make a 20% down payment if Harry and Plaintiff gave him approximately \$70,000; (4) Harry and Plaintiff could reside at the Subject Property for life; and (5) Defendant would care for them in old age. The FAC further alleges that Defendant did not intend to honor those representations when made, intended to assert exclusive ownership once title was secured, and induced Plaintiff and Harry to part with money and allow title to be structured in a way that
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	left Defendant in control. (FAC, ¶¶ 10-14, 50-56.) At the pleading stage, these allegations are sufficient. Tentative Ruling: The demurrer to the 2nd cause of action is OVERRULED. <i>3rd Cause of Action – Cancellation of Instrument</i> When an otherwise valid deed does not truly express the intention of the parties, whether through fraud or mistake, the deed may be revised, reformed, or in some cases canceled. (Steiner v. Steiner (1958) 160 Cal.App.2d 665, 668-669.) Defendant demurs to the cancellation of instrument claim on the grounds that Plaintiff does not state a claim for fraud. Thus, because Plaintiff adequately alleges fraud, Plaintiff adequately alleges cancellation of instrument. Defendant also argues Plaintiff only alleges in a conclusory manner that she has a reasonable apprehension that if left outstanding, the deed would cause injury, without any facts and without any explanation. However, Plaintiff alleges Defendant has used the deeds and record title to exclude Plaintiff from her home, pursue eviction, prevent access to her belongings, list the Subject Property for sale, and threaten extinguishment of Plaintiff's equitable and possessory rights. (See FAC, e.g., ¶¶ 36, 67.) These allegations are sufficient to support Plaintiff's claim that she has a reasonable apprehension that if left outstanding, the deed would cause injury. Tentative Ruling: The demurrer to the 3rd cause of action is OVERRULED. <i>4th Cause of Action – Declaratory Relief</i> Defendant argues the fourth cause of action for declaratory relief is derivative of its quiet title should be dismissed if Plaintiff's quiet title claim does not survive demurrer. Thus, the quiet title cause of action survives demurrer. Tentative Ruling: The demurrer to the 4th cause of action is OVERRULED. <i>5th Cause of Action – Unjust Enrichment/Constructive Trust</i>
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	Unjust enrichment and constructive trust are remedies, not causes of action. ((Habitat Trust for Wildlife, Inc v City of Rancho Cucamonga (2009) 175 Cal.App.4th 1306, 1332; accord, Farmers Ins Exchange v Zerin (1997) 53 Cal.App.4th 445, 457 [constructive trust]; (McBride v. Boughton (“McBride”) (2004) 123 Cal.App.4th 369, 387 [unjust enrichment].) Tentative Ruling: The demurrer to the 5th cause of action is SUSTAINED with 10 days leave to amend. <i>6th and 7th Causes of Action – Ouster and Partition</i> Both causes of action require Plaintiff to have an interest in the property. (Civ. Code, §§ 843(a); 872.810.) Plaintiff has adequately alleged an equitable interest in the property to withstand demurrer. Tentative Ruling: The demurrer to the 6th and 7th causes of action is OVERRULED. <i>9th Cause of Action – IIED</i> “A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. A defendant's conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050 (cleaned up).) “With respect to the requirement that the plaintiff show severe emotional distress, this court has set a high bar. Severe emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it.” (Id. at 1051.) Plaintiff has alleged sufficient emotional distress. (FAC, ¶¶ 15-36, 129-137) Tentative Ruling: The Demurrer to the 9th cause of action is OVERRULED.
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		Summary of Tentative Ruling: Motion to Strike: DENIED as to the 2nd, 3rd, 5th causes of action and GRANTED as to the 10th – 12th causes of action. Demurer: MOOT as to the 10th, 11th, and 12th causes of action, SUSTAINED with 10 days leave to amend as to the 5th cause of action, OVERRULED as to the remaining cause of action Defendant to give notice
3	Cardenas vs. New Life Treatment Center, Inc. 2025-01505645	Motion for Leave to File Cross Complaint <i>Procedural issues</i> Defendants have not filed a proof of service showing the moving papers were served on Plaintiff. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As Plaintiff filed an opposition, Plaintiff does not appear to have been prejudiced by Defendants’ failure to do so. In the future, the Court may decline to consider documents unaccompanied by the required proof of service. Moreover, Defendants’ motion is single-spaced in violation of California Rules of Court, rule 2.108(1) which requires the lines on each page to be one and one-half spaced or double-spaced. The Court reminds counsel of Local Rule 700.5 for the Superior Court of Orange County, which states, “Attorneys and self represented parties must comply with all applicable statutes in addition to Local Rules and the California Rules of Court.” <i>Likely use of generative artificial intelligence</i> The Court notes Defendants’ motion includes quotations that are not found in the cases cited. For example, Silver Organizations, Ltd. v Frank (1990) 217 Cal.App.3d 94, 99 does not contain the quoted language cited by Defendants at page 5, line 9 and page 6, line 28, and page 8, line 18 of the motion. Additionally, Align Technology, Inc. v. Tran (2009) 179 Cal.App.4th 949, 958-959 does not contain the quoted language cited by Defendants at page 7, line 7. “[N]o brief, pleading, motion, or any other paper filed in any court should contain any citations—whether provided by generative AI or